Turley

8th August 2024
Delivered by email

Mr Ed Snook
Planning Department
Swindon Borough Council
Wat Tyler House
Swindon
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Dear Ed

NOTIFICATION OF SUBMISSION OF A RESERVED MATTERS APPLICATION PURSUANT CONDITION 2 ATTACHED TO OUTLINE PLANNING PERMISSION (REF. S/OUT/13/1555) AT WOODLANDS, PARCELS R8 & R9, NEW EASTERN VILLAGES, SWINDON

On behalf of our client Taylor Wimpey, we are pleased to submit a reserved matters application pursuant to Condition 2 (Reserved Matters) attached to outline planning permission under ref. S/OUT/13/1555, at Woodlands, Parcels R8 & R9, New Eastern Villages, Swindon. The description of development is as follows:

"Approval of Reserved Matters pursuant to condition 2 (layout, scale, appearance and landscaping) for the residential development comprising 134 dwellings and provision of public open space with associated infrastructure and earthworks, pursuant to outline planning permission S/OUT/13/1555."

Condition 2 (Reserved Matters) attached to the outline permission states:

"No development shall take place within each sub-phase, until such time as all the reserved matters for that sub-phase have first been submitted to and approved by the Local Planning Authority. The reserved matters are details of the layout, scale, appearance, and landscaping."

The site forms part of the wider adopted site allocation under Policy NC3 (New Eastern Villages – including Rowborough and South Marston Village Expansion) and Policy RA3 (South Marston) with the adopted Swindon Borough Council Local Plan 2026.

OUTLINE PLANNING PERMISSION

By way of context, outline planning permission for the wider site was granted by Swindon Borough Council on the 11th August 2021 under reference S/OUT/13/1555 for the following development:

> *"Outline Planning Permission, for a sustainable urban extension to the east of Swindon and north of the A420 of up to 2,380 dwellings together with a mixed use local centres/areas (including A1 retail up to 1,500 sq metres, services (A2), restaurants, pubs and takeaways (A3, A4, A5), business uses (B1) up to 1,000 sq metres, residential); community uses (D1); sheltered and/or care accommodation (C2/C3); two primary*

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schools; green infrastructure including formal (including playing fields) and informal open space, landscape, biodiversity and amenity space; play space (including NEAPS/LEAPS/MUGAS); changing and sports facilities (including D2) and ancillary retail uses; sustainable drainage systems; highway, cycle and pedestrian routes; car parking; infrastructure (including utilities); engineering works including ground remodelling; demolition, site reclamation and removal of structures; the formation of new accesses from the A420, Old Vicarage Lane and Thornhill Road.''

Compliance with outline planning conditions

A number of conditions attached to the decision notice were required to be discharged before submission of subsequent Reserved Matters applications. The relevant conditions are as follows:

- An application to discharge Condition 6 (Phasing Plan) was submitted and discharged on the 2nd August 2022.
- An application to discharge Condition 8 (Strategic Design Code) submitted and approved on the 1st May 2024.
- An application to discharge Condition 9 (Character Area Design Code) was submitted and partially discharged (in relation to the relevant Character Area for this reserved matters parcel) on the 12th July 2024 (in relation to Phase 1 – Marston Gate and Nightingale Corner).
- An application to discharge Condition 10 (Framework, Landscape, Ecology and Arboricultural Management Plan) was submitted and partially discharged (in relation to the relevant Character Area for this reserved matters parcel) on the 19th December 2023.

Condition 3 (Timing of Reserved Matters) states:

"The first application for the approval of reserved matters shall be submitted to the Local Planning Authority before the expiration of 3 years from the date of this permission. All subsequent reserved matters applications shall be submitted no later than 12 years from the date of this permission."

The first reserved matters application pursuant to the outline permission was submitted to Swindon Borough Council (ref. S/RES/24/0551) on 10th May 2024 for details of the layout, scale, appearance, access and landscaping in relation to a foul water pumping station. The applicated was validated on the 13th May 2024 and is pending a decision.

A subsequent Certificate of Lawfulness was approved 27th June 2024 which confirmed part compliance (in relation to submission of the first reserved matters) with Condition 3 (Timing of Reserved Matters) and confirmed that the permission under ref. S/OUT/13/1555 remains extant.

RESERVED MATTERS SUBMISSION

This application is for reserved matters approval in line with the requirements of Condition 2 of outline permission (ref. S/OUT/13/1555) which states:

"No development shall take place within each sub-phase, until such time as all the reserved matters for that sub-phase have first been submitted to and approved by the Local Planning Authority. The reserved matters are details of the layout, scale, appearance, and landscaping."

This application is seeking reserved matters consent for 134 dwellings with 31 affordable dwellings. The proposed development continues to comply with the broad parameters of the Illustrative Masterplan and the Development Framework Plan, along with remaining consistent with the following approved plans:

- Location Plan - Drawing Number (DN) LHL005-144 G (submitted to LPA on 14th February 2017)
- Proposed Highway Layout - Railway Crossing - DN 1335/HL/10 E (submitted to LPA on 14th February 2017)
- Highway Access & Improvement Works Context Plan - DN 1335-HL-23 G (submitted to LPA on 14th February 2017)

The application also includes provision for public open space with associated infrastructure and earthworks. This reserved matters application has been submitted in line with the above mentioned Strategic Design Code and Character Area Design Code as set out in the supporting Planning Statement.

PRE-APPLICATION ENGAGEMENT

The applicant has undertaken extensive pre-application engagement with the Council and the general public during design stages for the scheme. This has included throughout the allocation and outline planning application processes, as well as specifically in relation to this reserved matters application. The evolution of the scheme has also drawn upon the approved SDC and CADC referred to above.

A statement of community engagement (prepared by RKH) has been submitted as part of this planning application.

SUBMITTED DOCUMENTS

This application submission is supported by the following technical documentation as set out in the table below.

Documents submitted under this Reserved Matters Submission	Reference
Application Form and ownership certificates	As completed
Application Fee	£46,454.00
Planning Statement	Prepared by Turley – August 2024
Application Plans (including engineering and landscaping plans)	Prepared by Cooper Baillie (architectural), GL Studio (landscaping) and Taylor Wimpey (engineering)
Design and Access Statement	Prepared by Cooper Baillie (ref. CB_86_26)
Statement of Community Involvement	Prepared by Rock Kitchen Harris
Landscape, Ecology and Arboricultural Management Plan	Prepared by FCPR August 2024
Drainage Strategy	Prepared by Taylor Wimpey (ref.101-01)

SUBMITTED PLANS

Plan	Reference
Architectural Plans	

CA – EMT31 & EMA33 Elevations and Floorplans	CB_86_263_R8-R9_CA_EMT31_EMA33_01
Garage Elevations and Floorplans	CB_86_263_R8-R9_GAR_01
OVL_EMA49 Elevations and Floorplans	CB_86_263_R8-R9_OVL_EMA47_02
PE_EMA49 Elevations and Floorplans	CB_86_263_R8-R9_PE_EMA49_01
PS_EMA23 Elevations and Floorplans	CB_86_263_R8-R9_PS_EMA23_01
Site Location Plan	CB_86_263_R8-R9_000
Planning Layout	CB _86_263_R8-R9_001
Land Use Plan	CB_86_263_R8-R9_002
Housing Mix Plan	CB_86_263_R8-R9_003
Affordable Housing Plan	CB_86_263_R8-R9_004
Building Heights Plan	CB_86_263_R8-R9_005
Parking Strategy Plan	CB_86_263_R8-R9_006
Bin and Cycle Storage Plan	CB_86_263_R8-R9_007
External Finishes Plan	CB_86_263_R8-R9_008
External Enclosures Plan	CB_86_263_R8-R9_009
Character Area Plan	CB_86_263_R8-R9_012
CA Streetscenes	CB_86_263_R8-R9_CA_SS_01
OVL Streetscenes	CB_86_263_R8-R9_OVL_SS_01
PE Streetscenes	CB_86_263_R8-R9_PE_SS_01
PS Streetscenes	CB_86_263_R8-R9_PS_SS_01
Sections	CB_86_263_R8-R9_SECT_01
Engineering Plans	
Planning Slab Levels	106-01
Refuse Track Plot	103-01
Section 38	38-01
EV Charging	26-01
Road Geometry	20-01
Landscape Plans	
Land Management Plan	CB_L_86_263_1802
Landscape Specification	CB_L_86_263_1800
Staked tree in soft landscape detail	CB_L_86_263_R8-R9_1701
Tree in soft landscape detail	CBL_86_263_R8-R9_1700
Detailed Hard Landscaping Plan Sheet 1	CB_L_86_263_R8-R9_1600
Detailed Hard Landscaping Plan Sheet 2	CB_L_86_263_R8-R9_1601

Detailed Hard Landscaping Plan Sheet 3	CB_L_86_263_R8-R9_1602
Detailed Hard Landscaping Plan Sheet 4	CB_L_86_263_R8-R9_1603
Detailed Hard Landscaping Plan Sheet 5	CB_L_86_263_R8-R9_1604
Detailed Hard Landscaping Plan Sheet 6	CB_L_86_263_R8-R9_1605
Detailed Hard Landscaping Plan Sheet 7	CB_L_86_263_R8-R9_1606
Planting Plan Sheet 1	CB_L_86_263_R8-R9_1500
Planting Plan Sheet 2	CB_L_86_263_R8-R9_1501
Planting Plan Sheet 3	CB_L_86_263_R8-R9_1502
Planting Plan Sheet 4	CB_L_86_263_R8-R9_1503
Planting Plan Sheet 5	CB_L_86_263_R8-R9_1504
Planting Plan Sheet 6	CB_L_86_263_R8-R9_1505
Planting Plan Sheet 7	CB_L_86_263_R8-R9_1506
Landscape General Arrangement	CB_L_86_263_R8_R9_1300

SUMMARY

The relevant application fee of £46,554.00 will be paid via Planning Portal under application reference PP-13279191. We trust that the above is clear however if you do have any questions, please do not hesitate to contact me.

Yours sincerely

Emily Rickard
Planner

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